

ESTATE OF BETTY GROTON

Case Number: 24PB-0032384

This matter is on calendar for hearing on the Second Amended Petition for Probate of Will and Letters of Administration. The Court notes the following defects:

1. The Petition checks multiple incorrect boxes on the front page. The Court deems this to be a Petition for probate of will, and for appointment of an administrator with will annexed.
2. The Petition fails to attach a copy of the holographic will. The Petition attaches a typed copy of the holographic will, but both a copy of the holographic will and a typed copy are required. Probate Code Section 8002(b)(1).
3. Disclaimers have been filed by Allison Groton and Steven Groton. The legal effect of the disclaimer is that these two heirs are deemed to have pre-deceased the decedent. Item 8 of the Petition must now identify the individuals that are the intestate heirs of Allison and Steven. The intestate heirs of Allison and Steven would be entitled to notice.
4. The Court found the previous proof of publication to be defective, in that it failed to advise that Petitioner was seeking to probate a will, and the court ordered a new publication. No new proof of publication has been filed.

This matter is continued to **Monday, October 28, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition. An amended Petition must be filed that addresses the above defects. A Notice of Petition must be filed and timely served on all individuals entitled to notice for the continued hearing date. The matter must be republished with the required language. The clerk is instructed to mail a copy of today's minute order to the Petitioner if she does not appear. **No appearance is necessary on today's calendar.**

ESTATE OF KAREN HARVILLE

Case Number: 24PB-0032365

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Final Inventory and Appraisal filed on July 30, 2024, is accepted by the Court. The Court notes the future court date of May 5, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF MORGAN HARVIN

Case Number: 24PB-0032458

This matter is on calendar for further proceedings on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception of the proof of publication. The proof of publication filed on August 26, 2024, fails to provide all the required information contained in the Notice of Petition. It appears that the publication was modified either by the Petitioner or the newspapers to omit key allegations of the Notice of Petition. The matter will need to be republished. The matter is continued to **Monday, November 25, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Proper proof of publication is required to be filed. **No appearance is necessary on today's calendar.**